

2:00PM LINE 10

26-CIV-01031 JOSHUA WILSON, ET AL VS. ALON DESIGN AND REMODELING INC., ET AL

JOSHUA WILSON
ALON DESIGN AND REMODELING INC.

PRO SE

Attorney David Tran's Motion to be Relieved as Counsel

TENTATIVE RULING:

The motion to be relieved filed by counsel for defendant Eli Alon is **GRANTED**.

On August 11, 2026, defendant's counsel filed a notice of the court's August 4, 2026 ruling advancing the hearing of this motion to September 16, 2026 at 2:00 p.m., and filed a proof of service of the notice on Alon by email and U.S. Mail.

The proposed order must be updated to reflect any future hearings and will be effective upon the filing of the proof of service of this signed order upon the Eli Alon.

Counsel must advise the court whether they still represent the defaulted defendants Alon Design and Remodeling, Inc. and Enis Tursic.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 11

26-CIV-01392

ELENA LAUCHUNG-NACARINO VS. AMERICAN AIRLINES INC., ET AL

ELENA LAUCHUNG-NACARINO
AMERICAN AIRLINES INC.

JEFF D. NEIDERMAN
ANDREW P. FREDERICK

Defendant Mark Lam's Demurrer to Plaintiff's Complaint

TENTATIVE RULING:

Plaintiff Elena Lauchung-Nacarino has sued her former employer, defendant American Airlines, Inc., and her former supervisor, defendant Mark Lam for harassment based upon race/national origin, harassment based upon sex/gender, and intentional infliction of emotional distress (IIED), as well as other claims not alleged against defendant Lam.

Defendant Lam's demurrer is **SUSTAINED** with leave to amend as to plaintiff's claim for harassment based on race/national origin (second cause of action). Defendant Lam's demurrer is **OVERRULED** as to plaintiff's claims for harassment based on sex/gender (fourth cause of action) and IIED (eleventh cause of action).

Any amended complaint must be filed within ten (10) days of notice of entry of the formal order.

A. Legal Standard

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*).)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).)

"[I]t is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (*Aubry, supra*, 2 Cal.4th at p. 967.) If there is any reasonable possibility that plaintiff can cure the deficiency by amendment, then leave to amend should be granted even if the demurrer is sustained. (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.)